Republic of the Philippines
Bangsamoro Autonomous Region in Muslim Mindanao
BANGSAMORO TRANSITION AUTHORITY PARLIAMENT
Bangsamoro Government Center, Cotabato City

THIRD REGULAR SESSION

PARLIAMENT RESOLUTION NO. 514

RESOLUTION EARNESTLY EXPRESSING ITS DEEP GRATITUDE FOR THE RESTORATION OF SUPERVISION OVER THE PUBLIC ATTORNEY'S OFFICES IN MAGUINDANAO, BASILAN, SULU, AND TAWI-TAWI TO THE PUBLIC ATTORNEY'S OFFICE – BANGSAMORO AUTONOMOUS REGION IN MUSLIM MINDANAO REGIONAL OFFICE

WHEREAS, Section 3 of the Republic Act No. 9406 states that the Public Attorney's Office (PAO) shall independently discharge its mandate to render, free of charge, legal representation, assistance, and counselling to indigent persons in criminal, civil, labor, administrative and other quasi-judicial cases. In the exigency of the service, the PAO may be called upon by proper government authorities to render such service to other persons, subject to existing laws, rules and regulations;"

WHEREAS, Section 5 of the same Act provides that the authority and responsibility for the exercise of the mandate of the PAO and for the discharge of its powers and functions shall be vested in the Chief Public Attorney;

WHEREAS, esteemed Dr. Persida V. Rueda-Acosta, DSD, who was appointed as the nationwide head of the PAO on February 23, 2001, by former President Gloria Macapagal-Arroyo, is the current Chief Public Attorney;

WHEREAS, Chief Public Attorney Dr. Rueda-Acosta is known for her laudable commitment to the objectives of her office, which are to grant the indigent sector access to legal counsel in their time of need, and to steadfastly uphold the constitutional guarantee of free access to courts, due process, and equal protection of the laws and restore people's faith in the judicial system;

WHEREAS, under the Republic Act No. 11054, otherwise known as the *"Organic Law for the Bangsamoro Autonomous Region in Muslim Mindanao"*, the territorial jurisdiction of the Bangsamoro Autonomous Region in Muslim Mindanao (BARMM) includes the provinces of Basilan, Sulu, Tawi-Tawi, Maguindanao, and Lanao Del Sur, and the cities of Lamitan and Marawi;

WHEREAS, sometime in 2009, Basilan, Sulu, and Tawi-Tawi were removed from the supervision of the PAO – Autonomous Region in Muslim Mindanao (ARMM), now BARMM, Regional Office and were placed under the supervision of the Zamboanga Peninsula Region (Region 9B) pursuant to the directives of Chief Public Attorney Dr. Rueda-Acosta;

WHEREAS, in 2015, Maguindanao was likewise removed from the supervision of the same regional office and was transferred to PAO – South Cotabato, Cotabato, Sultan Kudarat, Sarangani, General Santos (SOCCSKSARGEN) region;

WHEREAS, only the province of Lanao del Sur remains under the supervision of the former PAO-ARMM;

WHEREAS, the PAO-BARMM Regional Office has been entrusted with the responsibility of ensuring that justice is accessible to all, particularly in the areas of Maguindanao and the BARMM;

WHEREAS, the placement of the aforementioned PAO offices outside the supervision of the PAO - BARMM hinders access to legal representation and support for its residents and impedes the agency from meeting the growing legal needs of its intended clients;

WHEREAS, the Bangsamoro Parliament acknowledges the crucial role of the PAO, not only in providing legal services and representation to indigent litigants in the BARMM, but also in regional policy formulation;

WHEREAS, pursuant to the letters dated February 8, 2024, from Department of Budget and Management Secretary Amenah F. Pangandaman and Department of Justice Undersecretary Brigido J. Dulay, Deputy Chief Public Attorney Ana Lisa M. Soriano, by authority of the Chief Public Attorney Dr. Rueda-Acosta, has issued Office Order No. 22, Series of 2024, concerning Reconstitution of the Constituent District Offices of Regional Office No. IX-A (Bangsamoro Autonomous Region in Muslim Mindanao-BARMM), Regional Office No. IX-B (Zamboanga Peninsula) and Regional Office No. XII (SOCCSKSARGEN Region), restoring the supervision over the PAOs in Maguindanao, Basilan, Sulu, and Tawi-Tawi to the PAO-BARMM Regional Office:

NOW, THEREFORE, be it

RESOLVED, as it is hereby resolved by the Bangsamoro Transition Authority Parliament, To earnestly express its deep gratitude for the restoration of supervision over the Public Attorney's Offices in Maguindanao, Basilan, Sulu, and Tawi-Tawi to the Public Attorney's Office – Bangsamoro Autonomous Region in Muslim Mindanao Regional Office.

RESOLVED, FURTHER, that the Bangsamoro Parliament calls on the PAO to take all necessary measures to ensure the smooth and efficient transition of supervision over PAO-Maguindanao and PAO-Basilan, Sulu, and Tawi-Tawi back to the PAO-BARMM Regional Office.

RESOLVED, FINALLY, To present this resolution to the Office of the Chief Public Attorney for its consideration.

ADOPTED, *Rajab* 23, 1446/January 23, 2025.

Certified Correct:

PROF. RABY B. ANGKAL
Secretary-General

Attested:

ATTY. PANGALIAN M. BALINDONG
Speaker

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